

**CHAPTER clxvi.**

An Act to enable the urban district council of Weston-super-Mare to construct additional waterworks to enlarge the cemetery to acquire lands to borrow additional moneys and to confer upon that Council various powers for the health and good government of the district and for other purposes. A.D. 1914.
[7th August 1914.]

WHEREAS the district of Weston-super-Mare in the county of Somerset is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Weston-super-Mare Urban District Council (in this Act called "the Council"):

And whereas the several Acts and Orders specified in the First Schedule to this Act among other Acts and Orders are in force within the district which Acts and Orders are in this Act referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made:

And whereas the Council are the owners of a waterworks undertaking whereby they supply the district with water and in order to enable them the more effectually to exercise their powers with respect to the supply of water it is expedient that they be empowered to make the additional waterworks in this Act described:

And whereas it is expedient that further powers as in this Act contained should be conferred upon the Council with respect to their water undertaking:

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And whereas estimates have been prepared by the Council for the purchase of land for and the execution of the water-works by this Act authorised and such estimates amount to sixty-nine thousand four hundred pounds:

And whereas estimates have been prepared by the Council of the cost of the acquisition and laying out of the lands by this Act authorised to be acquired by them and such estimates amount to nineteen thousand pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Council be authorised to acquire lands for the purposes of extending and enlarging their existing burial ground or cemetery and to utilise the lands so acquired for burial purposes:

And whereas it is expedient that further provision should be made with reference to the recreation grounds and the parades foreshore sands and wastes within the district and that the powers of the Council for and in relation to the improvement health and local government of the district should be enlarged and altered as by this Act provided:

And whereas it is expedient that the other provisions in this Act contained should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas the following adoptive Acts are in force within the district (namely):—

The Burial Acts 1852 to 1906;

The Infectious Disease (Prevention) Act 1890;

The Public Health Acts Amendment Act 1890 (Parts II. III. and V.);

The Public Libraries Acts 1892 to 1901;

Sections 17 20 to 25 (both inclusive) and 27 to 33 (both inclusive) of Part II. sections 34 35 36 37 39 to 46 (both inclusive) 48 49 50 and 51 of Part III. Parts IV. V. and VI. sections 79 81 and 86 of Part VII. and Parts IX. and X. of the Public Health Acts Amendment Act 1907:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained: A.D. 1914.

And whereas plans and sections showing the lines situations and levels of the works by this Act authorised and the lands in or through which they will be made or which may be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Somerset and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Weston-super-Mare Urban District Council Act 1914. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Waterworks.

Part III.—Water Supply.

Part IV.—Cemetery and Burial Ground.

Part V.—Rogers' Field.

Part VI.—General Provisions as to Lands.

Part VII.—Streets Buildings Sewers and Drains.

Part VIII.—Infectious Disease and Sanitary Provisions.

Part IX.—Recreation Grounds Seashore &c.

Part X.—Financial.

Part XI.—Miscellaneous.

Division of
Act into
Parts.

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Incorporation of Acts.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(2) The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(b) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts:

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” and “the work” means the waterworks authorised by this Act and “the centre of the railway” means the centre of such works respectively.

Interpretation.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The district” means the urban district of Weston-super-Mare;

“The Council” means the urban district council of the district;

“The clerk” “the accountant” “the surveyor” “the medical officer” and “the inspector of nuisances” mean respectively the clerk the accountant the surveyor the medical officer of health and any inspector of nuisances of the Council and include respectively any person duly authorised to discharge temporarily the duties of those offices;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district; A.D. 1914.

“Occupier” means the person for the time being in actual occupation or possession of the lands with reference to which that term is used;

“The Public Health Acts” means the Public Health Act 1875 and any Act amending or extending the same;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the order or precept of the Council;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

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PART II.

WATERWORKS.

Power to
construct
waterworks.

5. Subject to the provisions of this Act the Council may construct and maintain upon the lands and in the situation and lines and according to the levels shown on the deposited plans and sections relating thereto the several works shown on the deposited plans and may enter upon take and use the lands shown upon the deposited plans and described in the deposited book of reference which they may require for the purposes of such works or the purposes of this Part of this Act The works herein-before referred to are as follows (that is to say):—

Work No. 1 A covered intake tank to be situate in the parish of Banwell in the rural district of Axbridge at or in the pond known as Banwell Pond:

Work No. 2 A line or lines of pipes (No. 1) in the said parish of Banwell commencing at or in the said intake tank Work No. 1 and terminating at or in the pumping station Work No. 4 herein-after described:

Work No. 3 A line or lines of pipes (No. 2) in the said parish of Banwell commencing by a junction with the said line or lines of pipes (No. 1) at a point in the road leading from Banwell to Hewish 12 chains or thereabouts measured in a southerly direction from the principal entrance gate to the Banwell Gasworks and terminating at a point in the enclosure numbered 1221 on the $\frac{1}{2500}$ scale Ordnance map of the said parish Somerset sheet XVII. 3 (2nd edition 1903) near the eastern side thereof:

Work No. 4 A pumping station and well or wells in the said parish of Banwell to be situate in the enclosure numbered 434 on the $\frac{1}{2500}$ scale Ordnance map of the said parish Somerset sheet X. 15 (2nd edition 1903):

Work No. 5 An adit (No. 1) in the said parish of Banwell in connexion with the said Work No. 4 and extending therefrom in a north-easterly direction for a distance of 7 chains or thereabouts to a point in the enclosure numbered 414 on the said Ordnance map sheet X. 15:

Work No. 6 An adit (No. 2) in the said parish of Banwell in connexion with the said Work No. 4 and

extending therefrom in a south-westerly direction for a distance of 7 chains or thereabouts to a point in the enclosure numbered 438 on the said Ordnance map sheet XVII. 3: A.D. 1914.

Work No. 7 A line or lines of pipes (No. 3) commencing in the said parish of Banwell at or in the said Work No. 4 extending thence into and through the parish of Worle in the rural district of Axbridge to and terminating in the district at or in the existing water-works pumping station belonging to the Council and situate in Milton Road:

Work No. 8 A service tank (No. 1) in the district to be situate in the north-eastern corner of the enclosure numbered 280 on the $\frac{1}{2500}$ scale Ordnance map of the parish of Weston-super-Mare Somerset sheet IX. 16 (2nd edition 1903):

Work No. 9 A service tank (No. 2) together with a water tower to be situate in the district adjoining the existing high service tank belonging to the Council at or near the summit of Worlebury Hill and in the enclosure numbered 135 on the $\frac{1}{2500}$ scale Ordnance map of the said parish Somerset sheet IX. 12 (2nd edition 1903).

6. The shaft or shafts of the well or wells (Work No. 4) shall be so lined as to prevent surface water from percolating through the surrounding soil into such shaft or shafts. As to lining
of Work
No. 4.

7. The Council may in connexion with and for the purposes of the works authorised by this Part of this Act and their water undertaking make and maintain upon the lands shown upon the deposited plans all such subsidiary works including cuts channels catchwaters tunnels aqueducts adits culverts shafts wells bores water towers overflows waste-water channels drifts mains pipes conduits boxes drains sluices relief valves by-washes washouts tanks gauges filter beds banks piers bridges walls viaducts embankments cuttings roads ways approaches engines sheds buildings telegraph and telephone posts wires and other apparatus appliances and conveniences as may be necessary or convenient in connexion with the before-mentioned works or any or either of them or the water undertaking of the Council but nothing in this section shall exonerate the Subsidiary
works.

A.D. 1914. Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Limiting
powers of
Council to
abstract
water.

8. The Council shall not under the powers of this Act sink any well on the lands numbered on the deposited plans 5 in the parish of Banwell.

Power to
stop up foot-
paths.

9. The Council may stop up any footpaths shown upon the deposited plans as intended to be stopped up and thereupon all rights of way over the same shall be extinguished but such footpaths shall not be stopped up unless the Council are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree Provided that the Council shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Limits of
deviation.

10. In the construction of the works by this Part of this Act authorised the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards Provided that except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to
hold lands
for protec-
tion of
waterworks.

11. The Council may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

12. The agreement dated tenth day of November one thousand nine hundred and thirteen and made between the Bristol Waterworks Company of the one part and the Council of the other part as set out in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto and shall be carried into effect by them.

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 Confirming
 agreement
 between
 Council and
 Bristol
 Waterworks
 Company.

13. Subject to the provisions of this Part of this Act the Council may collect impound take divert use and appropriate for the purposes of their water undertaking the waters now flowing into the Banwell Pond in the said parish of Banwell and the waters derived from the springs feeding such pond and all such springs and waters as may be intercepted by the existing works of the Council or by any of the works by this Part of this Act authorised.

Power to
 take waters.

Notwithstanding anything to the contrary in this section contained the Council shall not without the previous consent in writing of the Great Western Railway Company under their common seal take use divert or appropriate any streams springs and waters upon or under the lands of the Great Western Railway Company which may be intercepted by any of the new waterworks.

14.—(1) If it shall be proved that the pumping by the Council at the pumping station by this Act authorised has caused any diminution of the supply in any private well existing at the time of the passing of this Act such private well being situate within a radius of one mile from such station the Council shall upon the written request of the owner of any such private well as aforesaid (in this section referred to as “the owner” which term shall include any lessee or occupier) afford to the owner a supply of water equal to the amount of such diminution as so proved at such cost or rate (if any) as that the total cost to the owner of obtaining his full supply shall be the same after as before the construction of the said pumping station and upon such other terms as may be agreed or failing agreement may be settled by arbitration as herein-after provided.

Provision
 where exist-
 ing wells
 affected.

(2) The Council may if they think fit in lieu of making good the diminution of supply from any such private well deepen the affected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge

A.D. 1914. therefor give the Council access and every facility for carrying out such deepening borings or headings.

(3) If the Council do not afford a supply equal to the diminution as aforesaid they shall make compensation in money to any such owner for any such diminution as shall not have otherwise been made good and they shall also make like compensation for any injury caused to such owner by the exercise by the Council of the powers conferred by the last preceding subsection or by the diminution of the supply in such well prior to the Council having made good such diminution or paid compensation therefor the amount of such compensation to be settled in case of difference by arbitration as herein-after provided.

(4) The Council shall not be liable in respect of any claim made by the owner under this section if he shall have failed to afford to the officers servants or other representatives of the Council at all reasonable times after the passing of this Act access to the well in respect of which the claim is made for the purpose of ascertaining particulars thereof and the level of the water therein.

(5) For the purpose of complying with the provisions of this section the Council may exercise all necessary powers and carry out all necessary works beyond the limits of supply of the Council and subject to the provisions of this Act the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes shall so far as applicable extend and apply with respect to the execution by the Council of any works for the purposes of this section.

(6) Any question or dispute arising under this section shall be referred to and determined by a single arbitrator to be agreed on between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

New works
to form part
of water
undertaking.

15. Subject to the provisions of this Act the waterworks to be constructed under the authority of this Part of this Act shall for all purposes whatsoever (including the provisions of the Act of 1878 with respect to water rates) be deemed part of the water undertaking.

16.—(1) Before the Council take appropriate or use any of the waters of the Banwell Spring under the provisions of this Act they shall provide and maintain in a suitable position in the covered intake tank by this Act authorised a gauge or other instruments necessary for measuring and recording the flow of the water from the said spring and such gauge and other instruments and the record of the flow of water shall be open at all reasonable times for inspection by all parties interested in the water of the River Banwell.

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Provisions
respecting
abstraction
of water.

(2) The Council shall not take appropriate or use any waters of the said spring when there shall be less than the following quantities of water flowing over the gauge aforesaid:—

(a) A quantity of water on each day from the first day of June to the thirty-first day of October in any year both days inclusive than at the rate of one million gallons per diem; or

(b) On any other day during such year a quantity of water on each day at the rate of three quarters of a million gallons per diem :

And whenever after the completion of the pumping station by this Act authorised the flow of the Banwell Spring measured at the gauge aforesaid falls below the rate of one million gallons per day the Council shall discharge from the said pumping station into the River Banwell through the said gauge or other instruments a quantity of water equal to the quantity by which the flow as so measured is below one million gallons per diem.

(3) In case of any neglect on the part of the Council to maintain the said gauge or other instruments in a state of efficiency and in case of any other neglect by or in consequence of which the said respective quantities of compensation water shall not so flow the Council shall for every day on which such neglect occurs be liable to a penalty of five pounds and such penalty may be recovered by the Axbridge Rural District Council or by the commissioners of sewers for the county of Somerset.

(4) In the case of any claim against the Council for compensation under the provisions of this Act which authorise the abstraction of water from the Banwell river or spring the same shall be referred to and determined by an arbitrator as hereinafter provided and the arbitrator shall take into account all the

A.D. 1914. — circumstances of the case including the provisions of this section and no compensation shall be awarded unless it be shown to the arbitrator that the damage in respect of which the compensation is claimed is directly due to the abstraction of water by the Council from the said river or spring or to the failure of the Council to discharge water from the said pumping station as aforesaid.

(5) All matters in difference arising under this section shall be determined by an arbitrator mutually agreed upon in writing by the parties or failing agreement to be nominated by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

As to works
and water at
Banwell.

17.—(1) The Council shall not completely cover in or fill up the existing pond at Banwell unless and until they shall have provided at or near the said pond a suitable and sufficient watering place for stock and for washing carts and the Council shall thereafter maintain such watering place and keep the same supplied with sufficient water for the purposes aforesaid.

(2) The Council shall also provide and maintain a stand pipe in connexion with the covered intake tank by this Act authorised and shall keep the same at all times supplied with water from such tank and such stand pipe shall be at all times available for use by the inhabitants of the village of Banwell for obtaining a supply of water for domestic purposes free of any cost.

(3) The Council shall also in connexion with the works at Banwell by this Act authorised make at their own cost and subject to the reasonable approval of the Axbridge Rural District Council such alteration of the existing drains or sewers in or in proximity to such works as may be necessary or desirable for the purposes of those works.

(4) If any difference shall arise between the Council and the Axbridge Rural District Council under the provisions of this section the same shall be referred to and determined by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

18. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of as well the existing works as the new works or of any lands from through or under which any waters may flow or percolate directly or derivatively into any such works with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting and conveying and preserving the purity of the waters by this Act or the former Acts authorised to be diverted collected and appropriated by the Council.

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Power to
agree as to
drainage of
lands &c.

19. The Council on selling any lands acquired by them in connexion with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or deposit or discharge of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights &c. on
sale.

20.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining any of the waterworks of the Council the Council may cause the water in such works to be temporarily discharged into any available stream or watercourse.

Temporary
discharge of
water into
streams.

(2) In the exercise of the powers conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such powers the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Public Health Act 1875 as to arbitration.

21. Any telegraphic or telephonic apparatus made maintained erected or laid down by the Council under the authority of this Part of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

For protec-
tion of Post-
master-
General.

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For protec-
tion of Great
Western
Railway
Company.

22. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall unless otherwise agreed between the Great Western Company and the Council apply and have effect (that is to say):—

- (1) Work No. 7 (line or lines of pipes No. 3) by this Act authorised where the same shall be carried under the railway and works of the Great Western Company herein-after referred to as "the said work" shall be constructed in such position as the engineer of the Great Western Company shall require and shall for its entire length across the said railway and for twenty-five feet on each side of the boundary fences of such railway be laid and carried by means of a steel pipe founded on and surrounded by Portland cement concrete or enclosed in a subway to be constructed and maintained by the Council and no part of such work shall be less than three feet below the level of the rails of the said railway at the point of crossing:
- (2) In constructing and also (except in cases of emergency) in effecting the repair alteration or renewal of the said work at the said point of crossing the same shall be done by and in all things at the expense of the Council and under the superintendence (if the same be given) and to the reasonable satisfaction of the said engineer and at such time or times as he shall approve so as not to interfere with the structure of the said railway and according to plans sections and particulars to be submitted to and reasonably approved by the said engineer before any such works shall be executed. Provided that if the said engineer shall not signify his approval of such plans sections and particulars within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof. The Council shall restore and make good to the reasonable satisfaction of the said engineer the railway and works of the Great Western Company so far as the same may be disturbed or interfered with by or owing to any of the operations of the Council. Provided that if the Great Western

Company so elect they may themselves execute and maintain the said work (other than the actual laying down and maintenance of the pipes) and may recover the reasonable cost of so doing from the Council:

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- (3) The said work shall be constructed executed and maintained so as not to cause any injury or damage to the railways and works of the Great Western Company or any interruption to the passage or conduct of traffic over such railways or at any station thereon and if any such injury damage or interruption shall arise from the acts operations or things aforesaid or by reason of the failure of the Council to maintain the said work or the bursting leakage or failure of any aqueduct conduit main or pipe of the Council under or near to any railways or works of the Great Western Company all such injury or damage shall forthwith be made good by the Council at their own expense and to the reasonable satisfaction of the said engineer and the Council shall indemnify the Great Western Company from all claims in respect of any such injury damage or interruption and shall make compensation to the Great Western Company for and in respect thereof:
- (4) In the event of the Council failing to make good such injury or damage as aforesaid or failing to maintain the said work (where it passes under over or in any way affects the railways or works of the Great Western Company) in substantial repair and good order to the reasonable satisfaction in all respects of the said engineer or in case of emergency of which the said engineer shall be the sole judge the Great Western Company may make good the same and make and do in and upon as well the lands of the Council as their own lands all such repairs and things as may be reasonably requisite and recover the reasonable expense thereof from the Council:
- (5) If it should be necessary during the construction of the said work or in consequence of such construction or of the existence of the same to alter any of the telegraph telephone or signal posts or wires or other

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work or apparatus belonging to or on the railway of the Great Western Company the Great Western Company may effect such alterations and the Council shall repay to them the reasonable expenses incurred by them in and connected with such alterations:

- (6) The Council shall acquire only such an easement across over or under any of the railways works or property of the Great Western Company as may be necessary for carrying and maintaining the said work under the said railway works and property of the Great Western Company and shall pay to the Great Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration:
- (7) The Council shall bear and on demand pay to the Great Western Company the reasonable expenses of the employment by them during the construction and maintenance of the said work under the railway and works of the Great Western Company of a sufficient number of inspectors signalmen or watchmen to be appointed by the Great Western Company for watching and protecting the said railway and works and the conduct of the traffic thereon with reference to and during the execution and maintenance of the said work and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person or persons in the employ of the Council or of their contractors with reference thereto:
- (8) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railway or to extend alter or

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repair their railway bridges viaducts works or property upon across over or under which the said work may have been constructed or laid the Great Western Company may after giving to the Council twenty-eight days' notice in writing under the hand of their secretary or general manager or in case of emergency of which the said engineer shall be the sole judge after giving such notice as is possible divert support or carry the said work across over or under their lands railway bridges works or property at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be and so as not to interrupt or interfere with the supply of water without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that any works executed by the Great Western Company under this subsection shall be executed under the superintendence and to the reasonable satisfaction of the Council:

- (9) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering and reconstructing repairing or maintaining their railways bridges or works by reason of the existence of the said work shall be paid by the Council:
- (10) The Council shall not without the previous consent of the Great Western Company exercise the powers conferred on them by the section of this Act of which the marginal note is "Power to lay pipes in private streets" in respect to any street which is the property of the Great Western Company but such consent shall not be unreasonably withheld:
- (11) Except as in this section otherwise expressly provided in the event of any dispute or difference arising between the Council and the Great Western Company respecting any of the matters referred to in this section the point in difference shall be referred to and determined by an arbitrator to be

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appointed failing agreement at the request of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of
Weston-
super-Mare
and District
Electric
Supply
Company
Limited.

23. The following provisions for the protection of the Weston - super - Mare and District Electric Supply Company Limited (herein-after referred to as "the company") shall unless otherwise agreed between the Council and the company have effect:—

Nothing in this Part of this Act shall extend to or authorise any interference with any works of the company to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section Provided that for the purposes of this section any electric line as defined in the said Act of 1882 used for conveying electricity for the purposes of the tramways of the company shall be deemed to be an electric line to which the said section 15 applies.

For protec-
tion of Ax-
bridge Rural
District
Council.

24. For the protection of the Axbridge Rural District Council (in this section called "the Axbridge Council") the following provisions shall unless otherwise agreed in writing between the Axbridge Council and the Council apply and have effect:—

- (1) The lines of pipes Works Nos. 2 3 and 7 by this Act authorised (herein-after referred to as "the said lines of pipes") where the same are laid in any road for the time being repairable by the Axbridge Council or any bridge vested in the Axbridge Council or any roadway over such bridge or the approaches to such bridge so repairable shall be laid in such position in or at the side of the road and in the case of any of the said lines of pipes which it is reasonably necessary to lay otherwise than in the roadway over a bridge the same shall be carried on the structure of such bridge in such manner as the Axbridge Council in writing under the hand of their surveyor may reasonably direct:

- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets bridges and sewers drains and tunnels for the purpose of laying pipes shall (subject to the provisions of this section) in their application to the said lines of pipes upon any such bridge and approaches be read and construed as if the notice required by section 30 of that Act was not less than seven days instead of three days : A.D. 1914.
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall in the case of any interference with a bridge or the approaches thereto vested in the Axbridge Council be accompanied by a section of the proposed works and shall be delivered to the Axbridge Council or their surveyor by the Council not less than seven days before the commencement of any works to which such plan relates :
- (4) The Council shall not interfere with the structural part of any bridge without the consent in writing of the surveyor of the Axbridge Council which may be given upon such reasonable conditions as the Axbridge Council or their surveyor may determine but shall not be unreasonably withheld :
- (5) The exercise of the powers of the Council of laying the said lines of pipes shall not interfere with prejudice or affect the right of the Axbridge Council at any time to alter the level of deviate or improve in any manner they think fit any road in or along which the said lines of pipes shall have been laid and the Council shall as soon as practicable after receiving notice in writing under the hand of the clerk or surveyor to the Axbridge Council so to do alter the position of the said lines of pipes in the manner and to the extent described by such notice or as in case of difference shall be determined by arbitration in the manner herein-after described and the cost of such alteration shall be paid to the Council by the Axbridge Council on demand :
- (6) The Council shall on demand pay to the Axbridge Council the reasonable expenses incurred by them in relation to the reasonable superintendence by them

A.D. 1914

or their surveyor of any works of the Council to which the provisions of this section relate:

- (7) If at any time the Axbridge Council desire to rebuild or alter any bridge vested in them on the structure of which any of the said lines of pipes shall be carried the Council shall after reasonable notice by the Axbridge Council make at their own expense such alteration of the said lines of pipes as may be reasonably necessary for the purposes of such reconstruction or alteration of bridge:
- (8) The Axbridge Council shall not enforce any of the provisions of this section so that the supply of water by the Council shall be liable to be interrupted:
- (9) If any difference shall arise between the Axbridge Council and the Council under this section such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference:
- (10) Where the said lines of pipes have been laid at a depth below the surface of any road of less than three feet the Axbridge Council shall not be liable for or in respect of any damage or injury caused to such work by the use by the Axbridge Council of any steam or other roller for the repair of any such road or of any traction engine belonging to the Axbridge Council provided that such roller or engine does not exceed fifteen tons in weight.

For protection of commissioners of sewers for county of Somerset.

25. For the protection of the commissioners of sewers for the county of Somerset (herein-after called "the commissioners") the following provisions shall unless otherwise agreed in writing between the Council and the commissioners apply and have effect (that is to say):—

- (1) The lines of pipes Works Nos. 2 3 and 7 by this Act authorised shall be so laid and the work of laying the same so executed as not to impede the flow of water in any river rhyne ditch stream or other work

under the jurisdiction of the commissioners or to A.D. 1914.
cause flooding therefrom :

- (2) Twenty-eight days before the Council commence to construct any of the works authorised by this Part of this Act under over through or alongside any river rhyne ditch stream or other work under the jurisdiction of the commissioners the Council shall submit to the commissioners for their reasonable approval plans sections and other necessary particulars showing how they propose to execute such works in relation to such river rhyne ditch stream or other work. The Council shall not interfere with any such river rhyne ditch stream or other work until they shall have given to the commissioners three clear days' notice in writing of their intention to commence the works, and such notice shall not be given until the said period of twenty-eight days has expired or the approval of the commissioners to the said plans, sections and particulars has been previously given and all such works shall be carried out under the superintendence of an engineer acting on behalf of the commissioners if they consider it necessary that such superintendence shall be given and any reasonable expenses of the commissioners under this subsection shall be repaid to them by the Council :
- (3) The Council shall make full compensation to the commissioners for any damage to any river rhyne ditch stream or other work under the jurisdiction of the commissioners which may be caused by the construction of such works or by any act or default of the Council their contractors servants or agents :
- (4) If any difference shall arise between the Council and the commissioners under this section the same shall be referred to and determined by an arbitrator to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

26. For the protection of the county council of the administrative county of Somerset (in this section called "the For protection of

A.D. 1914. Somerset Council") the following provisions shall unless otherwise agreed in writing between the Council and the Somerset Council apply and have effect (that is to say):—

Somerset
County
Council.

- (1) The lines of pipes Works Nos. 2 3 and 7 by this Act authorised (herein-after referred to as "the said lines of pipes") where the same are carried in along or over any main road for the time being repairable by the Somerset Council or any roadway over any county or main road bridge vested in the Somerset Council shall be laid in such position in or at the side of such road as the Somerset Council in writing under the hand of their surveyor may reasonably direct and the Council shall reinstate any road drain goit culvert or water table belonging to or under the control of the Somerset Council which may be interfered with and in the case of any of the said lines of pipes which it is reasonably necessary to lay otherwise than in the roadway over any such bridge the same shall be carried on the structure thereof in such manner as the Somerset Council may in like manner direct:
- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall (subject to the provisions of this section) in their application to the laying of the said lines of pipes in such main road county or main road bridge and the roadway over and approaches to such bridge be read and construed as if the notice required by section 30 of that Act was in the case of any such bridge or approach not less than fourteen days instead of three days and in the case of any such main road not less than seven days instead of three days:
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall in the case of any of the said lines of pipes to be carried over a bridge or the approaches thereto vested in the Somerset Council be accompanied by a section of the proposed works and shall be delivered to the Somerset Council or their surveyor by the Council not less than fourteen

days before the commencement of the works to A.D. 1914.
which it relates :

- (4) All works shall be so executed by the Council as not to unreasonably impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto :
- (5) The Council shall not interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the Somerset Council which may be given upon such reasonable conditions as the Somerset Council or their surveyor may determine but shall not be unreasonably withheld :
- (6) The exercise of the powers of the Council of laying the said lines of pipes shall not interfere with prejudice or affect the right of the Somerset Council at any time to alter the level of or deviate or improve in any manner they think fit any main road in or along which the said lines of pipes shall have been laid and the Council shall on receiving notice in writing under the hand of the clerk or surveyor to the Somerset Council so to do alter at their own cost with all reasonable dispatch the position of the said lines of pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed :
- (7) The exercise of the powers of the Council of laying the said lines of pipes shall not prejudice or affect the right of the Somerset Council at any time to remove alter rebuild widen or repair any county bridge or main road bridge or the approaches to any such bridge or the roadway over the same in over or attached to which the said lines of pipes are carried in the same manner as the Somerset Council might have removed altered rebuilt widened or repaired such bridge roadway or the approaches if this Act had not been passed and the said lines of pipes had not been so laid or attached and the Somerset Council shall not be required to repay to the Council any expense to which the Council may be put by reason or in consequence of any such

A.D. 1914.
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removal alteration rebuilding widening or reparation but the Somerset Council shall take all reasonable precautions to prevent injury to the works of the Council and shall pay compensation for any loss which the Council may sustain by reason of any injury directly due to the acts of the Somerset Council their contractors or workmen In the event of any such bridge roadway or approaches being removed altered rebuilt widened or repaired as aforesaid the Council shall at their own cost in all things alter the position of the said lines of pipes so far as the same are carried in over or attached to such bridge or approaches as aforesaid in such manner as the Somerset Council or their surveyor may reasonably direct Provided that during any such removal alteration rebuilding widening or reparation the Somerset Council shall afford to the Council all reasonable facilities for temporarily carrying the said lines of pipes across any stream or river so as not unduly to interrupt the continuous supply of water or to diminish the pressure of such supply through the said lines of pipes and the Council may carry the said lines of pipes accordingly and shall reimburse the Somerset Council all reasonable expenses incurred by the Somerset Council in affording such facilities:

- (8) The Council shall as far as practicable construct maintain and keep watertight the said lines of pipes and works in connexion therewith:
- (9) If the Council shall after reasonable notice from the Somerset Council under the hand of their surveyor neglect to do or complete any work or act required by subsections (6) and (7) of this section to be done by the Council then and in any such case the Somerset Council may do such work or act themselves under the superintendence (if given) of the Council completing the same with all reasonable expedition and in a proper and workmanlike manner and causing as little damage or inconvenience to the Council as circumstances admit The Council shall repay to the Somerset Council the reasonable cost of doing any such work or act required by subsection (7) of this section and all proper costs charges

and expenses incurred in connexion therewith or A.D. 1914.
occasioned by such neglect as aforesaid:

- (10) The Council shall pay to the Somerset Council the reasonable expenses incurred by them in relation to the reasonable superintendence by the Somerset Council or their surveyor of any works of the Council to which the provisions of this section relate:
- (11) The Somerset Council shall not execute any works under this section or enforce any of the provisions of this section so that the supply of water by the Council shall be unduly interrupted and if the Somerset Council so interrupt the supply of water they shall repay to the Council any loss damages or expenses to which the Council may thereby be put or become subject:
- (12) If any difference at any time arises between the Somerset Council and the Council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid:
- (13) Where the said lines of pipes have been laid at a depth below the surface of any main road of less than three feet the Somerset Council shall not be liable except in cases of negligence for or in respect of any damage or injury caused to any work of the Council by the use by or on behalf of the Somerset Council of any steam or other roller for the repair of any main road or of any traction engine belonging to the Somerset Council provided that such roller or engine does not exceed fifteen tons in weight.

PART III.

WATER SUPPLY.

27. The water supplied by the Council need not at any time be delivered at a pressure greater than that which can be Limits of
pressure.

A.D. 1914. — afforded by gravitation from the reservoir or tank from which the supply is given.

Byelaws for preventing waste &c. of water.

28.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

(4) As from the passing of this Act section 21 (Power to make regulations for preventing waste of water) of the Act of 1878 shall be and the same is hereby repealed.

Notice of discontinuance.

29. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council.

Detection of waste.

30. Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up

and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Council shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 : A.D. 1914.

Provided that the Council shall not enter upon break up or interfere with the railway works lines or apparatus of the Great Western Railway Company except with the consent in writing and under the supervision of the engineer of the Great Western Railway Company and the Council shall where necessary provide reasonable means of access for persons bonâ fide going to or coming from the houses or stations or other premises of the Great Western Railway Company in any streets so stopped up.

31. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes : Supply by
measure.

Provided also that in the case of a supply of water by meter for domestic purposes the price to be charged by the Council shall not exceed two shillings per one thousand gallons and nothing in this section shall empower the Council to require any person to take his supply of water for domestic purposes by or through a meter.

32.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a penalty not exceeding five pounds Injuring
meters &c.

A.D. 1914. and the Council may in addition thereto recover the amount of any damage sustained by them.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
lay pipes in
private
streets.

33. The Council may on the application of the owner or occupier of any premises within the limits of water supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Act and any former Act relating to the water undertaking of the Council.

Entry on
premises to
remove fit-
tings and
meters.

34. The Council by their agents or workmen after forty-eight hours' notice in writing under the hand of the clerk or some other officer of the Council to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Council is laid or fixed and through or in which the supply of water is from any cause other than the default of the Council discontinued for the space of forty-eight hours may enter such

house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. A.D. 1914.

35. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Council. Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties. Register of meter to be *primâ facie* evidence.

36. If it should appear to the Council that by reason of any injury to or defect in any communication pipe which is situate in a highway and which the Council are not under obligation to maintain any waste of water or injury or risk of injury to persons or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. Power to Council to repair communication pipes.

37. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contribution shall be settled by the Council. Maintenance of common pipe.

38. Notwithstanding anything contained in section 70 (Rates to be paid quarterly) of the Waterworks Clauses Act 1847 the Council may by resolution declare that their water rents rates and charges shall be payable at such date or dates as the Dates for payment of water rates.

A.D. 1914. Council may from time to time appoint Provided that no person shall be compellable to pay water rents rates or charges so demanded for any longer period in advance than three calendar months.

PART IV.

CEMETERY AND BURIAL GROUND.

Enlargement
of cemetery.

39.—(1) Subject to the provisions of this Act the Council may acquire by compulsion or agreement and appropriate and use for burial purposes with and as part of their existing cemetery and burial ground the following lands (that is to say):—

Certain lands in the parish and urban district of Weston-super-Mare in the county of Somerset comprising the enclosures numbered 297 302 303 304 and 306 and portions of the enclosures numbered 301 and 305 on the $\frac{1}{2500}$ scale Ordnance map (Somerset) sheet IX. 16 (2nd edition 1903) and containing $15\frac{3}{4}$ acres or thereabouts such lands being bounded on the north by lands forming part of Manor Farm on the south by Milton Road on the east by Manor Road and on the west by the back gardens of houses situate in Elmhyrst Road and Hill Road.

(2) The said lands shall be held used applied and appropriated for the purposes of the cemetery and shall be subject to all and the same provisions as are now applicable to the existing cemetery or the Council in respect thereof except any provisions of the Burial Acts 1852 to 1906 which may interfere with or restrict the right of the Council to use any part of such lands as and for a burial ground.

PART V.

ROGERS' FIELD.

Power to
acquire
Rogers'
Field.

40.—(1) The Council may enter upon take and use compulsorily or by agreement certain lands in the district known as "Rogers' Field" situate on the southern side of South Parade and bounded on the south in part by Post Office Road in part by the Royal Arcade and in part by Saint Margaret's Terrace on the east by High Street and on the west by the Marine Parade Carriage Drive and the provisions of section 84 (Power

to erect conservatories and reading rooms &c.) of the Act of 1887 and the provisions of Part IV. (Parks Gardens Pleasure and Recreation Grounds) of the Act of 1896 and the provisions of the Public Health Acts with respect to public walks and pleasure grounds shall be applicable to and in respect of the said lands and the Council may hold and use the said lands or any part or parts thereof accordingly. A.D. 1914.

(2) Notwithstanding anything shown upon the deposited plans or contained in this Act the Council shall not acquire any interest of the Postmaster-General in the said lands and any rights of the Postmaster-General in or over the said lands shall not be extinguished except with the consent in writing of the Postmaster-General.

41. For the protection of the Weston-super-Mare Hotel Limited and their successors and assigns owners for the time being of the premises now known as The Royal Hotel Weston-super-Mare (all of whom are in this section included in the expression "the owner") the following provisions shall except so far as may be otherwise agreed in writing between the Council and the owner apply and have effect (that is to say):—

For protec-
tion of
Weston-
super-Mare
Hotel
Limited.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not enter upon take or use any part of the land referred to in the section of this Act the marginal note whereof is "Power to acquire Rogers' Field" which is coloured green on the plan signed in duplicate by the Right Honourable the Earl of Plymouth the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and of which one copy has been deposited in the Parliament Office of the House of Lords and the other copy in the Private Bill Office of the House of Commons:
- (2) Notwithstanding anything contained in this Act the powers of the Council for the compulsory purchase of the remainder of the said lands shall cease after the expiration of two years from the passing of this Act:
- (3) No part of the said land which may be acquired by the Council shall thereafter be used for any purpose

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other than as a summer and winter garden and a recreation ground and no building shall be erected on any part thereof which may not be appropriate as part of such summer or winter garden or recreation ground or which may be detrimental to the said hotel :

- (4) No building other than an ornamental shelter or shelters not exceeding twenty feet in height shall be erected upon any part of the said land which is coloured yellow on the said plan signed as aforesaid after the same shall have been so acquired by the Council :
- (5) No road shall be made upon any part of the said land which may be acquired by the Council so as to communicate with the road known as South Parade :
- (6) No licence for the sale of intoxicating liquors upon any part of the said land which may be acquired by the Council shall be applied for by the Council and in any letting by the Council they shall require to be inserted a covenant binding the lessee not to so apply :
- (7) No steam organs or roundabouts or other noisy games or amusements shall be carried on or permitted on any part of the said land which may be acquired by the Council :
- (8) The Council shall not sell exchange or otherwise dispose of any part of the said land that may be acquired by them except that they may subject to the provisions of this section let the same under and in accordance with any of the provisions relating to parks gardens pleasure and recreation grounds contained in the Public Health Acts the Act of 1887 and the Act of 1896 and this Act :
- (9) So soon as reasonably practicable after the acquisition by the Council of the lands aforesaid they shall provide and make up a footpath eight feet wide and fenced from the lands coloured green along the line coloured blue on the said plan signed as aforesaid and upon the certificate of two justices that such footpath is available for public use all public rights of way over the lands hatched with red colour on the said plan shall cease and are hereby extinguished.

PART VI.

A.D. 1914.

GENERAL PROVISIONS AS TO LANDS.

42. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

43. If any omission mis-statement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be described in the deposited plans or book of reference the Council may apply to two justices not being members of the Council for the correction thereof after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction and if it appears to such justices that the omission mis-statement or erroneous description arose from mistake they shall certify the same accordingly stating the particulars of the omission mis-statement or erroneous description and such certificate shall be deposited with the clerk of the peace for the county of Somerset and a duplicate of the certificate shall also be deposited with the officer or person with whom the plans or book of reference to which it relates was deposited and such certificate and duplicate respectively shall be kept with the other documents to which it relates and subject and according to the same enactments and provisions as apply to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Council may enter on take hold and use those lands accordingly.

Correction of errors in deposited plans and book of reference.

44. The Council may for the purposes of this Act (other than the purposes of Part IV. Cemetery and Burial Ground) in addition to the lands they are authorised to acquire and hold under the powers of the former Acts and under any of the powers of this Act from time to time by agreement acquire in fee either by purchase or by way of exchange or by way of lease or otherwise any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder thereover or thereupon (not being an easement right or privilege of water in which persons other than the grantors have an interest) Provided that the Council shall not create or permit a nuisance on any such lands.

Additional lands by agreement.

A.D. 1914.

Compensation in case of recently altered buildings.

45. In settling any question of disputed purchase money or compensation under this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirtieth day of November one thousand nine hundred and thirteen if in the opinion of such tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Costs of arbitration &c. in certain cases.

46.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

47. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1914.

Persons
under dis-
ability may
grant ease-
ments &c.

48. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or the former Acts and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
retain sell
&c. lands.

49. So long as any lands remain to be acquired by the Council under the authority of this Act the Council may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board Provided that—

Proceeds of
sale of sur-
plus lands.

- (a) The amount to be applied in the purchase of lands under this section shall not exceed the amount for

A.D. 1914.
—

the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :

- (b) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Owners may be required to sell parts only of certain lands and buildings.

50. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Third Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after in this section referred to as “the scheduled properties” :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compen-

sation shall be submitted (herein-after in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :

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- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat

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cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART VII.

STREETS BUILDINGS SEWERS AND DRAINS.

Definition of paving metalling and flagging in Act of 1887.

51. Words referring to paving metalling and flagging in Part XIII. (Private Street Works) of the Act of 1887 shall include macadamising asphaltting gravelling kerbing and every method of making a carriageway or footway and that Part of that Act shall be construed accordingly.

Amendment of section 128 of Act of 1887.

52. Section 128 (Adoption of private streets) of the Act of 1887 shall be read and have effect as if the words "by the Commissioners" after the word "street" had been omitted therefrom.

Extending provisions of section 21 of Act of 1887 to plans for new streets.

53. The provisions of section 21 of the Act of 1887 shall extend and apply to and in respect of plans for new streets and the periods mentioned in that section shall be deemed to have been prescribed in respect of such plans as from the date of the passing of this Act.

Widening of roads when only one side is built upon.

54. When a road or lane is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street is about to be built on

the Council may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the bye-laws in force within the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that when the land on the opposite side of such road or lane is about to be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council and the said owner shall complete the same accordingly.

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55.—(1) Where in the opinion of the Council a new street not being a back street will form a continuation of or means of communication with a main thoroughfare or a continuation of or means of communication with a main approach to the district the Council may if they see fit require the houses or other buildings intended to be erected in such new street to be set back from the centre line thereof to such distance not exceeding forty feet as they may see fit and the Council shall thereupon make full compensation to the owner or owners of and to any other person interested in the lands abutting upon the said new street for any damage which may be sustained by him or them by reason of such houses or other buildings being required to be set back as aforesaid and failing agreement the amount of such compensation shall be determined by arbitration in manner provided by the Lands Clauses Acts. Provided always that the Council may if they think fit instead of paying the compensation to such owner or owners under this section agree with him or them for the purchase of the said lands or any part or parts thereof.

Width of
main
thorough-
fares.

(2) All moneys payable by the Council by way of compensation or for the purchase of lands under this section may be defrayed out of moneys authorised by this Act to be borrowed with the sanction of the Local Government Board.

(3) For the purpose of this section "back street" means any street or passage intended to be used only as an access to the back of any building.

56.—(1) Every new building used or intended to be used as a tavern hotel restaurant hospital boarding-house common

Means of
escape from
buildings in
case of fire.

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lodging-house or school and exceeding thirty-five feet in height shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level adjoining such building with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this subsection have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to accommodation for cooking and storage of food in tenement houses.

57. If at any time it appears to the Council that in any tenement house within the district sufficient and suitable accommodation for the cooking and storage of food is not provided for the use of each family occupying such house on the storey or one of the storeys in which are situate the rooms or lodgings in the separate occupation of such family the Council may cause notice to be served on the owner of such house requiring him within such reasonable time as may be specified in the notice to provide sufficient and suitable accommodation for the purpose aforesaid and any owner failing to comply with any such requirement within the period prescribed in the notice shall be liable on summary conviction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings :

Provided that this section shall not apply to any tenement house used or occupied as such before the passing of this Act.

Erection of buildings to greater height than adjoining buildings.

58.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building

so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

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(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

59.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Trees or shrubs overhanging streets and footpaths.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice. Provided he gives written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt. Notice of the right to appeal shall be endorsed on or stated in every notice served under this section.

60. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Power to require specially large sewer in new street.

61.—(1) The Council may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this section called a "sewage sewer") and they may also declare that any other sewer for the

Separate sewers for surface water and sewage may be required.

A.D. 1914. — time being belonging to them shall thenceforth be appropriated and used for surface water (in this section called a "surface-water sewer").

(2) Where under the provisions of any Acts for the time being in force in the district the Council have power to require any street to be sewered they may require the provision of separate sewage sewers and surface-water sewers and the provisions of those Acts shall apply to such sewers accordingly Provided that the provisions of this subsection shall not be exercised unless and until the Council shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface-water from such separate surface-water sewers.

(3) (a) Where in any street separate sewers for sewage and surface water shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface-water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Council:

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings:

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and the surface-water drainage thereof and the Council may if they think fit make all such alterations.

Reconstruction of drains.

62.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws of the Council relating to the drainage of existing buildings.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1914.

63.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so. Notice of intention to repair drains.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by the clerk for the purpose of inspection.

(3) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

64. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Provisions as to combined drainage for two or more houses.

65.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners summarily as a civil debt. Power to order houses to be drained by a combined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

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(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council except with the consent of the owner or owners of the said house.

Discharge
from and
trapping of
pipes from
slop-stones
baths and
basins.

66.—(1) Every pipe from any slop-stone bath or basin in a building shall where practicable be carried through the external wall of such building and be constructed so as to discharge in the open air on the outside of such building over a channel leading to a gully grating at a suitable distance and every gully grating or other inlet to the drains shall be properly trapped.

(2) Any person neglecting or refusing for a period of twenty-eight days to comply with a notice from the Council requiring him to carry out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(3) Provided that this section shall only apply to buildings existing at the passing of this Act and that any expense incurred in respect of any such building beyond a sum of two pounds shall be borne by the Council.

Soil pipes to
be venti-
lated.

67.—(1) The soil pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or by such other method subject to the provisions of section 37 of the Public Health Acts Amendment Act 1907 as the Council shall direct.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Prohibiting
entry of
petrol &c.
into sewers.

68. Every person who wilfully turns or permits to enter into any sewer of the Council or any drain communicating with any sewer of the Council any petrol oil or other like deleterious substances from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

69. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

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Improper
construction
or repair of
watercloset
or drain.

70. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

As to houses
without
proper water
supply.

71.—(1) Before the owner of any land shall culvert or cover over any watercourse thereon forming part of the natural drainage of the area involved he shall submit for the approval of the Council plans sections and specifications of such watercourse and the method of culverting or covering over the same and the Council may subject as herein-after provided require such owner so to construct any such culvert or so to cover over any such watercourse as to secure the free and uninterrupted passage of the water flowing in any such watercourse:

Water-
courses not
to be covered
over except
in accord-
ance with
approved
plans.

Provided that—

(a) No requirement of the Council under this section shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or permit to pass if this section had not been enacted:

(b) If with the consent of such owner the Council shall require him to make provision for the passage of

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—

a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Council.

(2) If any difference shall arise between the Council and such owner as to the expediency or necessity of the works required by the Council to be executed or otherwise under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) Nothing in this section contained shall apply to any culvert or covering constructed or to be constructed by the Great Western Railway Company under any Act of Parliament.

Saving for
Great West-
ern Railway
Company.

72. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by the Great Western Railway Company as a part of or in connexion with their railway under any Act of Parliament.

PART VIII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Regulation
of manufac-
ture and sale
of ice-cream.

73.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who—

(a) Causes or permits ice-cream or other similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to

take any proper precaution for the due protection of such commodity from infection or contamination; or A.D. 1914.

- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

74.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of a rag and bone merchant or any person acting on behalf of any such person as aforesaid to sell or distribute within the district any articles of food for human consumption from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connexion with the business of rag and bone merchants.

Prohibiting sale &c. of articles of food for human consumption by rag and bone dealers.

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(2) Every person offending against this enactment shall be liable for each offence to a penalty not exceeding five pounds.

Regulation
dustbins.

75. The Council may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not authorise the Council to require the provision of a dustbin in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition.

Area of
habitable
rooms.

76. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the district shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Street
orderly bins.

77. The Council may provide and maintain bins for sand and gravel or other materials and orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of such dimensions and in such positions as they may from time to time determine.

Wilful
damage to
drains water-
closets &c.

78.—(1) If any person causes any drain or watercloset or earth-closet or privy ashpit or dustbin to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds.

(2) Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Byelaws as
to slaughter-
houses and

79. As from the date of the confirmation of any byelaws made by the Council under the provisions of section 169 (Power

to provide slaughter-houses) of the Public Health Act 1875 A.D. 1914.
 section 233 (Tolls for the slaughter-houses) of the Act of 1842 repeal of
 shall be and the same is hereby repealed but without prejudice existing
 to any right of the Council to recover any charges then due to enactment
 them under the provisions of the last-mentioned section. as to tolls.

80.—(1) The occupier of any building which is used for Information
 human habitation and in which there is or has been any person to be fur-
 suffering from an infectious disease shall on the application of nished in
 the medical officer at any time during the illness of such person case of
 or within six weeks from the occurrence of such illness furnish infectious
 such information within his knowledge as the medical officer disease.
 may reasonably require for the purpose of enabling measures to
 be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information
 shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have
 the same meaning as in the Infectious Disease (Notification)
 Act 1889.

81. When any person suffering from infectious disease Removal of
 whereof notice shall have been given to the medical officer shall body of per-
 die of such disease the medical officer may give notice thereof son dying of
 to the person responsible for the conduct of the burial of the infectious
 body of such person and in such case it shall not be lawful to disease.
 transport any such body by railway or other public conveyance
 (not being a conveyance reserved for such purpose) unless and
 until the medical officer has certified that every precaution
 necessary for the public safety has been adopted to his satis-
 faction and any undertaker and any person so responsible who
 shall after the giving of such notice knowingly remove or assist
 in removing such body without such certificate and any person
 who unless unaware of such notice shall procure or endeavour
 to procure the removal of such body without having obtained
 such certificate shall be liable to a penalty not exceeding ten
 pounds.

82. Any person who being in charge of the body of any For prevent-
 person who has died from any dangerous infectious disorder ing contact
 or infectious disease shall permit or allow any other person with body of
 unnecessarily to come into contact with such body shall be liable person dying
 to a penalty not exceeding five pounds. of infectious
 disease.

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Medical
examination
of inmates
of common
lodging-
houses &c.
when infec-
tious disease
prevails.

83. Whenever the medical officer shall report in writing to the Council that there is a prevalence of dangerous infectious disease in the district or any adjoining district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the district by persons resorting to common lodging-houses the Council may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers herein-after mentioned and subject as herein-after provided the following provisions shall thereupon be in force within the district for such period as the Council having regard to the circumstances of the case shall in the resolution determine (that is to say):—

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Council may exist or has recently existed in any common lodging-house in the district medically examine any person found in any common lodging-house in the district with a view to ascertaining whether such person is suffering or has recently suffered from such disease Any person obstructing the medical officer in making the examination afore-said shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Council to every keeper of a registered common lodging-house in the district and to the Local Government Board :
- (3) Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination herein-before conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

84. If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

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Power to require names of laundrymen to whom clothes &c. from infected houses are sent.

Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

85. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Power to compensate persons for ceasing employment to prevent spread of disease.

86.—(1) If the Council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the district require the closing of any Sunday school or any department thereof or the exclusion of certain children for a specified time such requirement shall be at once complied with.

Power to close Sunday schools to prevent spread of infectious disease.

(2) Any person responsible for the conduct or management of any Sunday school wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

87.—(1) No room shop or other part of a building in which any food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

Places used for storage &c. of human food not to be used as sleeping places.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings but no penalty shall be imposed for an offence against this section if in the opinion of the court the occupation of such room shop or other part of a building in contravention of this section would not have caused risk of infection or of contamination of food.

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Defining
establish-
ment of new
business for
purposes of
section 112
of Public
Health Act
1875.

88. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Houses in-
fested with
vermin to be
cleansed.

89.—(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer it appears to the Council that any house is infested with vermin the Council shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Council may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Council in so doing shall (subject as herein-after provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Council in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. A.D. 1914.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Council was reasonable and as to whether the costs and expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

PART IX.

RECREATION GROUNDS SEASHORE &C.

90. In this Part of this Act the expression "seashore" means the foreshore in the district so far as it is for the time being vested in or leased to the Council and the sands and wastes in and adjacent to the district for the time being belonging to or vested in the Council. Defining
seashore.

91. The Council may construct and maintain on the seashore such promenades walls and other works as they may think necessary for the improvement or protection of the sea front but the exercise of the powers of this section in respect of any part of the foreshore leased to the Council shall be subject to the terms of such lease. Powers over
seashore.

92. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. Works
below high-
water mark
to be subject
to approval
of Board of
Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate

A.D. 1914. — and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown, and shall be recoverable as a Crown debt or summarily.

Amendment
of section 79
of Act of
1887 as to
byelaws.

93.—(1) Section 79 of the Act of 1887 shall extend to authorise the making of byelaws prohibiting or regulating the placing or using on the seashore or any part or parts thereof for purposes of sale or exposure of any article or thing of any booths tents sheds stands or stalls (whether fixed or moveable) or any vehicles or the placing or using on the seashore or any part thereof of any shows exhibitions performances swings roundabouts or other erections or any vans photographic carts or other vehicles whether drawn or propelled by animals persons or mechanical power.

(2) The powers of the said section regulating or prohibiting hawking or selling on the parades shall extend and be applicable in respect of the seashore.

(3) The Council may in any byelaws made by them under the provisions of the said section 79 of the Act of 1887 as amended by this Act provide for the discontinuance of the occupation and use by any person for purposes of profit or gain of any part of the seashore in respect of which such person shall have failed to pay any charge which shall have been prescribed by the Council in respect of such occupation and use. Provided that the failure to pay any such charges shall not be deemed to be a breach of any of the provisions of the byelaws or to subject any person to any liability to a penalty under such byelaws.

(4) The authority for confirming any byelaws made by the Council under this section or under the said section 79 of the Act of 1887 shall be a Secretary of State and not the Local Government Board.

Provision of
area on sea-
shore for
purposes of
discussion.

94. The Council shall upon a requisition to them signed by not less than fifty ratepayers provide for a period not exceeding twelve hours upon a defined portion of the seashore an area upon which the ratepayers of the district may discuss matters of general public interest.

Power to let
recreation
grounds &c.
to cricket
clubs &c.

95. The Council may from time to time let for terms not exceeding twelve months to any club company body or persons any portion of any park or place of public resort or

recreation set apart by them under the provisions of section 76 (Powers as to parks and pleasure gardens) of the Public Health Acts Amendment Act 1907 and may upon such portions so set apart erect construct maintain and let all proper and convenient houses pavilions dressing rooms and other buildings works and conveniences. A.D. 1914.

96. When any portion of a public park or pleasure or recreation ground is set apart by the Council for any purpose under paragraph (b) of subsection (1) of section 76 of the Public Health Acts Amendment Act 1907 and is specially laid out and maintained for any such purpose the Council may charge reasonable sums for the use thereof for that purpose. Charge for use of parts of recreation grounds &c. set apart for certain purposes.

97.—(1) The Council may pay or contribute towards the payment of bands of music or vocal choirs and may provide or arrange for the provision of concerts or other entertainments on the Marine Parade or in any recreation ground or public building for the time being vested in the Council and suitable for the purpose. Bands and concerts.

(2) The Council may on the Marine Parade or in any recreation ground vested in them enclose an area for the purpose of any such concert or other entertainment as aforesaid or for any performances by such bands or choirs.

(3) The Council may make such charges as they think fit for admission to any such building or enclosure as aforesaid in connexion with any such concert entertainment or performance and may make regulations for securing good and orderly conduct during any such concert entertainment or performance.

(4) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainment or performance given in pursuance of this section.

(5) The Council may pay or contribute towards the cost of providing and maintaining in the district and in newspapers published in the district advertisements of any concerts entertainments or performances given in pursuance of this section.

(6) The net amount of any payments or contributions made by the Council for the purposes of this section after deducting any moneys received by them in pursuance of this section shall not in respect of any one year exceed a sum equal to a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate.

A.D. 1914.

(7) No payment or contribution shall be made under this section unless incurred in pursuance of a resolution of an absolute majority of the whole number of the Council at a meeting of the Council after seven clear days' notice of such meeting and of the intention to propose such resolution.

Receipts and expenses.

98. The moneys received by the Council under this Part of this Act shall be carried to the credit of the district fund and the expenses incurred by them in exercising the powers contained in this Part of this Act may be paid out of the same fund.

PART X.

FINANCIAL.

Power to borrow.

99.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Prescribed period for Repayment.
For waterworks and lands in connexion therewith.	£ 76,200	Fifty years.
For and in connexion with the purchase of lands for the other purposes of this Act and expenditure on lands so purchased.	19,000	Sixty years for moneys expended in purchase of lands and thirty years for moneys expended thereon.
For providing a working balance - - -	5,000	Three years.
For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act:

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge— A.D. 1914.

As regards moneys borrowed for waterworks purposes the water rate and the district fund and general district rate :

As regards moneys borrowed for the remaining purposes herein-before mentioned other than the burial ground or cemetery the district fund and general district rate :

As regards moneys borrowed with the consent of the Local Government Board such fund rate or revenue as that Board may prescribe :

The provisions of this subsection shall not limit the powers conferred on the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

100. The moneys to be borrowed under this Part of this Act for the purposes of Part IV. (Cemetery and Burial Ground) of this Act shall be charged and the interest and sinking funds upon and in respect thereof shall be provided in the same manner and under the same provisions and conditions as moneys required for the provision and laying out of a burial ground under the Burial Acts 1852 to 1906 Provided that the Council shall not be required to repay moneys so borrowed in any less period than the prescribed period and provided also that it shall not be necessary for the Council to obtain any sanction or approval under those Acts to the borrowing of such moneys or to obtain the sanction of the vestry to any other expenditure under the said Part IV. Repayment &c. of moneys borrowed for purposes of Part IV. of this Act.

101. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned. Section 234 of Public Health Act 1875 not to apply.

102. All moneys borrowed by the Council under this Act shall be applied only to the purposes for which they are authorised to be borrowed and except in the case of money borrowed for providing a working balance to purposes to which capital Application of moneys borrowed.

A.D. 1914. — is properly applicable Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Provisions as to mortgages.

103. The following sections of the Public Health Act 1875 (that is to say):—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases); shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply to and in relation to all mortgages granted under the powers of this Act as if they were with necessary modifications re-enacted in this Act.

Protection of lender from inquiry.

104. Any person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act nor be bound to see to the application nor be answerable for any loss or non-application or mis-application of the money lent or of any part thereof.

Mode of payment off of money borrowed.

105. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing.

Sinking fund.

106.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a "non-accumulating sinking fund"; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an "accumulating sinking fund." A.D. 1914.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or in accordance with the provisions of the section of this Act of which the marginal note is "Power to use sinking fund instead of borrowing" be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

A.D. 1914.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as

the Council with the consent of the Local Government Board A.D. 1914.
may determine.

107.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen

A.D. 1914. — days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrow-
ing.

108.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and

raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

A.D. 1914.

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund:

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

A.D. 1914.

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(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Payment to
sinking fund
of money
received on
capital
account.

109. Unless the Local Government Board otherwise direct the Council shall pay into the sinking fund all such money being capital or in the nature of capital and not being wholly or in part otherwise appropriated or required to be otherwise applied as shall from time to time arise from any sale lease or other disposition of land or other property of the Council in respect of or for which any of the moneys have been borrowed under this Act and as shall from time to time arise from any other source under this Act.

Council not
to regard
trusts.

110. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Power to re-
borrow.

111.—(1) The Council shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original

loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1914.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

112.—(1) The accountant shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the accountant showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing

Annual re-
turn to Local
Government
Board re-
specting
sinking
fund.

A.D. 1914. to make such return the accountant shall for each offence be
 --- liable to a penalty not exceeding twenty pounds to be recovered
 by action on behalf of the Crown in the High Court and
 notwithstanding the recovery of such penalty the making of the
 return shall be enforceable by writ of Mandamus to be obtained
 by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that
 return or otherwise that the Council have failed to pay any
 instalment or annual payment required to be paid or to appro-
 priate any sum required to be appropriated or to set apart any
 sum required for any sinking fund (whether such instalment or
 annual payment or sum is required by the Act in pursuance of
 which the moneys are raised or by the Local Government Board
 in virtue thereof to be paid appropriated or set apart) or have
 applied any portion of any sinking fund to any purposes other
 than those authorised the Local Government Board may by order
 direct that the sum in such order mentioned not exceeding double
 the amount in respect of which default has been made shall be
 paid or applied as in such order mentioned and any such order
 shall be enforceable by writ of Mandamus to be obtained by the
 Local Government Board out of the High Court.

Expenses
under Part
IV. of this
Act.

113. The expenses of the Council in carrying into effect
 the provisions of Part IV. of this Act except such as are to be
 provided out of borrowed moneys shall be provided in manner
 prescribed by the Burial Acts 1852 to 1906 except that it shall
 not be necessary for the Council to obtain the authority of the
 vestry for any such expenditure.

Expenses of
executing
Act.

114. All expenses incurred by the Council in carrying into
 execution the provisions of this Act (except such of those
 expenses as are to be paid out of borrowed moneys or are
 otherwise provided for) shall be paid out of the district fund or
 general district rate Provided that when any expenditure is
 incurred or any money is received for purposes common to two
 or more accounts the Council may apportion the same between
 those accounts in such manner as they deem equitable.

Rates may
be amended
to accord
with new or
supplemen-
tary valua-
tion list.

115. The powers of section 221 (Rates may be amended) of
 the Public Health Act 1875 shall extend to enable the Council
 to amend any rate made by them in pursuance of such Act so
 as to make the assessment to such rate accord with any new
 or supplementary valuation list made during the currency of
 such rate.

116.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under any statutory borrowing power shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

A.D. 1914.

—
Scheme for
fixing
equated
periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

117.—(1) At any time after the passing of this Act the Council may resolve that any rates leviable within the district by the Somerset Sewers Commission shall cease to be levied upon the several persons who as owners or occupiers of property are now liable thereto within the district and the said sewers commission upon receipt of a certified copy of such resolution shall in lieu of levying such rates upon the persons who before the passing of this Act were liable to pay the same issue a precept to the Council for the total amount of the rates which

Sewers rates
leviable in
district by
Somerset
Sewers Com-
mission to be
paid by
Council.

A.D. 1914. but for the provisions of this section would have been so
— leviable and the Council shall pay the same accordingly.

(2) The Council and the said Somerset Sewers Commission may enter into and carry into effect agreements or arrangements with respect to the payment of such rates by the Council and for the composition thereof for such annual or other sum as may be agreed between the Council and the said commission and it shall be lawful for the said commission to accept and take in lieu of the rates previously to the passing of this Act leviable by them in the district any such annual or other sum as may be agreed upon in composition therefor.

PART XI.

MISCELLANEOUS.

Prevention
and removal
of projec-
tions over
streets.

118. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street.

As to traffic
along
Marine
Parade car-
riage drive.

119. The Council may make byelaws with respect to the traffic using the Marine Parade carriage drive within the district and may by such byelaws prescribe the nature of the traffic which may use the said drive and the hours during which traffic of any particular description shall not be entitled to use the same and may by such byelaws prevent the use of the said drive by any heavy vehicles or vehicles likely to cause damage to the surface thereof or to cause nuisance or annoyance to the other users thereof or to the residents; in the premises adjacent thereto.

Restrictions
on advertis-
ing vehicles.

120. It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit. Any person who acts in contravention of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be

liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings Any person aggrieved under this section by the refusal of the Council to give such consent or by the terms and conditions attached to such consent may appeal to a court of summary jurisdiction within three clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit. A.D. 1914.

121. The Council may convert any clinkers or other refuse or surplus material or product arising in connexion with the refuse destructor into slabs or blocks of artificial stone bricks concrete mortar and other materials and may construct such buildings and works and may in connexion therewith provide and erect such machinery plant and appliances as may be required and any such slabs blocks bricks concrete mortar or other materials so produced may be utilised by the Council for making and repairing streets or for any other purposes connected with the work of the Council for which they may be suitable or may be sold by the Council who shall carry the proceeds arising from any sales thereof to the credit of the district fund. Power to convert destructor refuse into slabs &c.

122. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. Effect of breach of conditions attached to consent.

123. Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Apportionment of expenses in case of joint owners.

124. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for Determination of compensation.

A.D. 1914. — determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Power to enter pre-mises.

125. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VII. and Part VIII. of this Act as if those purposes had been mentioned in the said section 102.

Pénalty on occupiers refusing execution of Act.

126. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Act or under any bye-law made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

In executing works in default of owner &c. no liability for damages to be incurred except in case of negligence.

127. Whenever the Council under any enactment or bye-law for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or any contractor or other person employed by them or him be liable to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

128. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into *bonâ fide* for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council.

A.D. 1914.

Persons acting in execution of Act not to be personally liable.

129. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply except where otherwise provided to all byelaws made by the Council under the powers of this Act:

General provisions as to confirmation &c. of byelaws.

Provided also that no byelaws affecting the foreshore shall come into operation until the consent of the Board of Trade has been obtained.

130. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

131. Save as otherwise in this Act specially provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid by any officer of the Council duly authorised in that behalf or by the clerk.

Laying of information and complaints.

132. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter

Appeal to quarter sessions.

A.D. 1914. sessions under and according to the provisions of the Summary Jurisdiction Acts.

Application of penalties.

133. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be carried by him to the credit of the district fund or to such other fund as the Council direct.

Saving for indictments.

134. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges and justices not disqualified by liability to rates.

135. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Recovery of demands in county court.

136. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Authentication and service of notices &c.

137.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

138. Where in any legal proceedings taken by or on behalf of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1914.

Evidence of
appoint-
ments &c.

139.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred on them or the giving of any consents under this Act and their inspectors shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by
Local Gov-
ernment
Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

140. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of his Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Saving for
Crown
rights.

141. All the powers rights and remedies given to the Council by this Act shall (except where otherwise expressly

Powers of
Act cumula-
tive.

A.D. 1914. — provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies for the time being possessed by them as owners or lessees of any foreshore or other lands or property or conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and shall be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Costs of Act. **142.** The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

The SCHEDULES referred to in the foregoing Act.

A.D. 1914.

THE FIRST SCHEDULE.

Session and Chapter.	Description or Short Title.
5 Vict. Sess. 2 cap. xx. -	The Weston-super-Mare Improvement and Market Act 1842.
14 & 15 Vict. cap. lxxv. -	The Weston-super-Mare Improvement and Market Act 1851.
16 & 17 Vict. cap. lxxvi. -	The Weston-super-Mare Waterworks Act 1853.
24 & 25 Vict. cap. 128 -	Two Provisional Orders confirmed by the Local Government Supplemental Act 1861 (No. 2).
39 & 40 Vict. cap. ccii. -	A Provisional Order confirmed by the Local Government Board's Provisional Orders Confirmation (Birmingham &c.) Act 1876.
41 & 42 Vict. cap. clxxxv.	The Weston-super-Mare Improvement Commissioners Water Act 1878.
46 & 47 Vict. cap. xcix. -	A Provisional Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1883.
49 Vict. cap. xvii. - -	A Provisional Order confirmed by the Local Government Board's Provisional Orders Confirmation Act 1886.
50 & 51 Vict. cap. cvii. -	The Weston-super-Mare Improvement Act 1887.
59 & 60 Vict. cap. ccli. -	The Weston-super-Mare Urban District Council Act 1896.
1 & 2 Geo. V. cap. cxlii. -	The Weston-super-Mare Order 1911.

THE SECOND SCHEDULE.

AN AGREEMENT made the tenth day of November one thousand nine hundred and thirteen between THE BRISTOL WATERWORKS COMPANY (herein-after called "the Company") of the one part and THE URBAN DISTRICT COUNCIL OF WESTON-SUPER-MARE in the county of Somerset (herein-after called "the Council") of the other part.

1. The Company shall sell and the Council shall purchase all the hereditaments and premises more particularly described in the schedule hereto and the inheritance thereof in fee simple in possession free from incumbrances at the price of four thousand pounds.

Stamp.



A.D. 1914.
—

2. Within one month after the date of the Royal Assent being given to the Bill in Parliament referred to in clause 7 hereof the Company shall deliver to the Council an abstract of their title to the said hereditaments and premises commencing as to part thereof with an indenture of mortgage dated the fifth day of December one thousand eight hundred and seventy-six and made between Thomas Castle of the one part and John Thomas Castle of the other part and as to the other part thereof with an indenture of conveyance dated the ninth day of February one thousand eight hundred and eighty-four and made between Thomas Castle of the one part and the said Thomas Castle and Joseph Rogers of the other part being a conveyance thereof to the said Thomas Castle and Joseph Rogers as tenants in common and co-partners.

3. The said hereditaments and premises are sold subject to all tenancies easements rights of way and other rights public or private (if any) affecting the same and also to all tithes tithe rentcharge quit rent and land tax.

4. The purchase shall be completed within six calendar months of the Royal Assent being given to the said Bill in Parliament and until such completion within six calendar months as aforesaid all outgoing shall be paid by the Company and the said hereditaments and premises shall be maintained by the Company and be at the risk of the Company in all respects. The Council shall as and from the time aforesaid be entitled to possession or receipt of the rents and profits of the said hereditaments and premises and shall pay all outgoing in respect thereof and if from any cause the purchase shall not be completed at the time aforesaid the Council shall thenceforth pay to the Company interest on the purchase money at the rate of five pounds per cent. per annum until the actual completion of the purchase.

5. The conveyance to the Council shall contain a covenant on their part that they will if and when required by the rural district council of Axbridge upon reasonable notice being given and subject to the sanction of the Local Government Board supply to the said rural district council at a point to be agreed upon in the field called "Ten Acres" referred to in the schedule hereto such quantity of water as may be required by that council not exceeding one hundred thousand gallons in any day of twenty-four hours at a price not exceeding sixpence per one thousand gallons to supply the parishes of Banwell Congresbury Puxton Wick St. Lawrence and Wrington or any of them all in the said county of Somerset:

Provided nevertheless that the said rural district council shall not be entitled to require of the Council such a supply of water as aforesaid unless demand shall be made therefor within such a time as will

enable the Council under the powers of the said Bill in Parliament when passed into law to acquire at the expense of the Council the said field called "Ten Acres" or any part thereof and to carry out the works authorised by the said Bill when passed into law for the purpose of such supply. A.D. 1914.

6. The Council shall pay all such costs charges and expenses as by section 82 of the Lands Clauses Consolidation Act 1845 are directed to be borne by the promoters of the undertaking and shall also pay the Company's costs and expenses incurred in or about the preparation and execution of this agreement whether the same is carried into effect or not.

7. The Council shall apply to Parliament in the next ensuing session for an Act authorising amongst other things the sale to and purchase by the Council of the said hereditaments and premises and to confirm this agreement but in the event of the Council failing to obtain such Act of Parliament then this agreement shall be null and void except as to so much thereof as provides for the payment by the Council of the Company's costs :

Provided always that the Council shall not be required to promote the said Bill in Parliament unless the parochial electors for the time being enrolled in the register of parochial electors in force for the urban district of Weston-super-Mare shall consent to such promotion to be expressed by resolution or otherwise in the manner provided in the Borough Funds Acts 1872 and 1903 or any Acts incorporated therewith or amending extending or altering the same respectively.

8. This agreement is subject to such alterations if any as Parliament may think fit to make herein but if Parliament shall make any material alteration herein it shall be competent for either party hereto by notice in writing to withdraw from and rescind this agreement.

In witness whereof the Company and the Council have hereunto affixed their respective seals the day and year first before written.

The SCHEDULE before referred to.

All those freehold hereditaments formerly known as the Banwell Brewery situate in the parish of Banwell in the county of Somerset with the working and other cellars stabling chaff house harness room offices hydraulic pump room grain house cart sheds outbuildings yards and premises adjoining and belonging thereto also the water grist mill adjoining the said Banwell Brewery with the pond of water adjoining and belonging to the said brewery and mill which said hereditaments are numbered 1196 on the tithe commutation map

A.D. 1914. — and reference book for the said parish of Banwell and contain by admeasurement three roods and twenty perches (more or less) and part of which are void and part of which are in the occupation of Mr. John James Willett as tenant Together with all course and courses stream and streams of water to the said Banwell Brewery and hereditaments running serving or belonging or of right therewith or at any time heretofore used occupied or enjoyed and all mill dams mill ponds mill banks mill tokens flood gates sluices water gates and edifices unto the said hereditaments belonging or therewith held used occupied or enjoyed Secondly all that freehold malt house with the cottage and yard adjoining thereto situate in West Street in the parish of Banwell aforesaid numbered 1186 on the tithe commutation map and reference book for the said parish and containing by admeasurement twenty-three perches (more or less) Together with the full right and liberty so far as the estate and interest of the Company extends of and in the two several closes of land and hereditaments herein-after mentioned but no further or otherwise to maintain and use the pipe carrying water from the said pond forming part of the said hereditaments hereinbefore first described to the said malt house in through and at a depth of two feet at the least below the surface of the said several pieces of land called or known by the name of the "Ten Acres" and orchard situate in the parish of Banwell aforesaid and numbered respectively 1175 and 1197 on the said tithe commutation map and reference book for the said parish of Banwell with liberty at all times hereafter whenever a new pipe may be required to enter upon the said close of land for the purpose of laying the said new pipe which shall be of a like size and follow the course in which the said pipe now lies or as near thereto as circumstances will admit.

The common seal of the Bristol Waterworks Com-
pany was affixed in the presence of—

H. N. ABBOT }
E. J. SWANN } Directors.

L.S.

The common seal of the urban district council of
Weston-super-Mare was in pursuance of an order
of the said Council duly made in that behalf
hereunto affixed in the presence of—

HENRY WARD

Chairman.

SYDNEY C. SMITH

Clerk.

L.S.

THE THIRD SCHEDULE.

A.D. 1914.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY
BE REQUIRED.

Parish.	Numbers on deposited Plans.
Worle - - - - -	3 and 12.
Weston-super-Mare - - - - -	7 29 and 30.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

WESTON-SUPER-MARE URBAN DISTRICT COUNCIL.

By virtue of the Weston-super-Mare Urban District Council Act 1914 and of other their powers in that behalf them enabling the urban district council of Weston-super-Mare in the county of Somerset (herein-after referred to as "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (herein-after referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid and satisfied with interest for the same (subject as herein-after provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the said district on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subse-

In witness whereof the Council have caused their common seal to
be hereunto affixed this _____ day of _____
one thousand nine hundred and _____.

L.S.

Dated this day of one thousand
 nine hundred and .

I [the within-named] _____ of _____
in consideration of the sum of _____ pounds
paid to me by _____ of _____
(hereinafter referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number _____ of the revenues
of the urban district council of Weston-super-Mare in the county of _____]

[4 & 5 GEO. 5.]

Weston-super-Mare
Urban District Council Act, 1914.

[Ch. clxvi.]

Somerset bearing date the _____ day of _____] A.D. 1914.
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators and
assigns do hereby agree to take the said mortgage security subject to
the same conditions.

Dated this _____ day of _____ one
thousand nine hundred and _____ .

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